EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

GÖĞÜŞ AND OTHERS
against Turkey

Applications nos. 68048/12, 68050/12, 68057/12, 68059/12, 68064/12, 69658/12, 78811/12

The European Court of Human Rights (Second Section), sitting on 28 January 2014 as a Committee composed of:
András Sajó, *President,*
Nebojša Vučinić,
Egidijus Kūris, *judges,*
and Stanley Naismith, *Section Registrar,*
Having regard to the above applications, listed in the Appendix,
Having deliberated, decides as follows:

THE FACTS

A list of the applicants is set out in the appendix. Additionally, the case and decision numbers of the impugned proceedings appear in the Appendix.

A. The circumstances of the case

The facts of the case, as submitted by the applicants, may be summarised as follows.

On various dates, the applicants initiated actions before various civil courts or civil proceedings were brought against them before the civil courts. All proceedings are still pending before the domestic courts.

B. Relevant domestic law

A description of the relevant domestic law may be found in *Müdür Turgut and Others* ((dec.), no. 4860/09, §§ 19-26, 26 March 2013).

COMPLAINTS

The applicants complained under Article 6 § 1 of the Convention that the proceedings before the national courts had not been concluded within a reasonable time.

Certain applicants complained under Article 6 of the Convention that they had been denied a fair hearing as the domestic judicial authorities had erred in assessment of the evidence and establishment of the facts.

Certain applicants also alleged violations of their freedom of association as guaranteed by Article 11 of the Convention in that their right to establish a political party was breached as civil proceedings were brought against them for debt.

THE LAW

I. JOINDER OF THE APPLICATIONS

The Court first considers that in accordance with Rule 42 § 1 of the Rules of Court, the applications should be joined, given the similarity of the facts and of the legal issues raised.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

The applicants complained that the length of the proceedings was incompatible within the ‘‘reasonable time’’ requirement, laid down in Article 6 § 1 of the Convention, which reads as follows:

> “In the determination of his civil rights and obligations ..., everyone is entitled to a ... hearing within a reasonable time by a ... tribunal...”

The Court observes that the applicants asserted that the length of the proceedings was incompatible with the principle of the ‘‘reasonable time’’ requirement in accordance with Article 6 § 1 of the Convention. In that respect, the Court found in *Müdür Turgut and Others* ((dec.), cited above, §§ 58 and 60) that the Compensation Commission established by Law no. 6384, insofar as it is accessible and capable of offering reasonable prospects of redress for complaints concerning the length of proceedings constituted a remedy which applicants were required to exhaust for the purposes of Article 35 § 1 of the Convention. Accordingly, the applicants should avail themselves of the new remedy offered by Law no. 6384.

It follows that these complaints must be rejected under Article 35 §§ 1 and 4 of the Convention for non-exhaustion of domestic remedies.

III. OTHER ALLEGED VIOLATION OF THE CONVENTION

The Court observes that the civil proceedings against the applicants are still pending before the domestic courts. Therefore, the related complaints under this article are premature and must be rejected for non-exhaustion of domestic remedies pursuant to Article 35 §§ 1 and 4 of the Convention.

For these reasons, the Court unanimously

Decides to join the applications;

Declares the applications inadmissible.

Stanley Naismith	András Sajó
Registrar	President

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by	Notes
1.	68048/12	19/09/2012	**Arif Alpay GÖĞÜŞ** 22/07/1969 İstanbul	Jülüde Işıl BAĞATUR	Istanbul 10. Enforcement Court E: 2007/2146
2.	68050/12	19/09/2012	**Hüsnü OKÇUOĞLU** 15/10/1948 İstanbul	Jülüde Işıl BAĞATUR	Ankara 8. Civil Court of General Jurisdiction E: 2004/125
3.	68057/12	19/09/2012	**Fatma Necla ZARAKOL** 30/08/1949 İstanbul	Jülüde Işıl BAĞATUR	Ankara 8. Civil Court of General Jurisdiction E: 2004/125
4.	68059/12	19/09/2012	**İsmail Hakan AKSU** 12/05/1962 İstanbul	Jülüde Işıl BAĞATUR	Ankara 8. Civil Court of General Jurisdiction E: 2004/125
5.	68064/12	19/09/2012	**Ali AKSOY** 18/02/1948 Adana	Jülüde Işıl BAĞATUR	Ankara 8. Civil Court of General Jurisdiction E: 2004/125
6.	69658/12	20/09/2012	**Kıvılcım Kemal ANADOL** 30/08/1949 Izmir	Jülüde Işıl BAĞATUR	Ankara 8. Civil Court of General Jurisdiction E: 2004/125
7.	78811/12	14/09/2012	**Mehmet Çağrı BAĞATUR** 21/08/1963 İstanbul	Jülüde Işıl BAĞATUR	Ankara 8. Civil Court of General Jurisdiction E: 2004/125